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|   |                                                                                | <p>fail to state specifically how the terms of the attached agreement are incomplete or insufficiently definite.</p> <p><u>Breach of Settlement Agreement</u></p> <p>Defendants argue Plaintiff fails to establish that “payment was due and owing under enforceable conditions” and that “any alleged delay or nonpayment may be excused or subject to conditions precedent.” Defendants’ conclusory contentions lack analysis and citation to supporting evidence.</p> <p>Nevertheless, the Court agrees. While Plaintiff has established Defendants did not pay the settlement amount within 45 days of the agreement (see Shabini Decl. [Supplemental], ¶ 4), the agreement contains the following condition precedent:</p> <p style="padding-left: 40px;">“20. <u>Condition Precedent – Dismissal</u>. Plaintiff acknowledges and agrees that a condition precedent to the receipt of the Settlement Amount is the full execution of this Agreement and the filing of a Request for Dismissal with prejudice of the entire action identified as Case No. 30 2022-01263671-CU-PO-CJC. <i>Defendants shall have no obligation to make any payment under this Agreement until such dismissal has been filed and confirmed.</i>” (See Shabini Decl., ¶ 3, Ex. 1, ¶ 20 [emphasis added].)</p> <p>To date, Plaintiff has not filed a Request for Dismissal as agreed. Therefore, Plaintiff has failed to satisfy a condition precedent.</p> <p><u>Interest</u></p> <p>Lastly, Defendants argue Plaintiff seeks interest and expanded relief not clearly set forth in the agreement. This argument is well taken. Plaintiff seeks interest of 10% per annum from the date of the breach, which is a request for prejudgment interest. However, the settlement agreement does not contain a provision for prejudgment interest. Therefore, there is no basis for awarding prejudgment interest. (See <i>Greentree Financial Group, Inc. v. Execute Sports, Inc.</i> (2008) 163 Cal.App.4th 495, 502 [reversing award of prejudgment interest not provided for in § 664.6 agreement: “The \$20,000 settlement sum in the stipulation (of entry of judgment) is unallocated, and may or may not have included . . . prejudgment interest. We find no basis for awarding . . . prejudgment interest in addition to the stipulated settlement sum.”].)</p> <p>The motion is DENIED.</p> |
| 6 | <p><b>24-01394637</b></p> <p><b><i>Dubai Holdings, LLC vs. Taifour</i></b></p> | <p><b>Motion to Be Relieved as Counsel of Record</b></p> <p>The motion of attorney Ira Frzer to withdraw as attorney of record for Defendant Mahammad Taifour is GRANTED. (Code Civ. Proc. § 284, Cal. Rules of Court, rule 3.1362.) Attorney will be relieved as counsel of</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |